

1 The Applicant's Representative (Mr. Oliver Ware) was contacted to discuss the compliance of the subject-matter of the Main request (MR) and the three auxiliary requests filed with the letter of 22.11.2024 in view of the preparation for the oral proceedings scheduled on 21.01.2025.

2 After considering the limitations from the subject-matter claimed by current MR and the arguments and data provided by the Applicant during the written procedure the subject-matter claimed by the MR filed on 22.11.2025 appears to fulfil the requirements of Articles 54 and 56 EPC.

In order that a communication under Rule 71(3) EPC is issued and the oral proceedings to be cancelled the Applicant has to amend the application such that also the requirements of Article 84 EPC are fulfilled, namely:

-amend claim 3 of the MR by deleting the first paragraph directed exactly to the same definitions for R_{3S} as the ones provided in claim 1 (in other words delete the first paragraph and limit this claim to the optional alternative)

-to adapt the description strictly to the scope of the amended claims.

At the moment the inconsistencies between the description and the claims suggest that the subject-matter for which protection is sought may be different to that defined by the claims, thereby resulting in lack of clarity of the claims (Article 84 EPC) when used to interpret them (see the Guidelines, C-III, 4.3 (iii)). It should be made clear which examples are intended to illustrate the invention and which ones are synthesis intermediates or background art not representing the invention.

3 As long the Examining Division is not provided with application documents which would overcome the above objections raised under Article 84 EPC, the oral proceedings are maintained.